

*Randall*, 7 Jurist, 1075 ; where the plaintiff's own bond was held sufficient, under a provision of 1 W. 4.. ch. 36, similar to the provision of the above mentioned Orders. Still the Court has power, no doubt, to require further security, and, although this may seem hard on a plaintiff without means, a similar rule is enforced in the Queen's Bench under the absconding debtor's Act ; and it often happens there that a plaintiff is stopped for want of the security. In that case, however, the security is expressly named in the statute. The point will remain uncertain until a case arises, on which it can be seen whether the authority of *Lett vs. Randall* will be followed.

Under the 76th English Order of 1845, answering to the above Order 33, there are the following decisions. There being husband and wife defendants, and no Order for the wife to answer separately, the Order *pro confesso* should be against both (*Alexander vs. Osborne*, 16 Law Journal, new series, 368 ; 11 Jurist 444). A notice of motion having been given, and defendant having answered, pending the notice, the plaintiff may have the costs of the motion. (*Spooner vs. Payne*. 12 Jurist, 642).

